

emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. ...' Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." ' [Citation.] 'Liability for intentional infliction of emotional distress " 'does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.' " ' [Citation.] A retaliatory motive alone is insufficient to sustain a claim for intentional infliction of emotional distress. [Citation.]" (*Light v. Department of Parks & Recreation* (2017) 14 Cal.App.5th 75, 101-102.)

Defendants argue that the allegations here are insufficient to show extreme and outrageous conduct by Greer. Plaintiff argues that the pattern of extreme verbal abuse, gender-based harassment, retaliation, and creation of a "potentially violent" work environment that forced Plaintiff to take medical leave and ultimately resigned, constitutes extreme and outrageous conduct. Here the facts alleged show that Plaintiff's supervisor made several comments with sexual innuendo and discussed other women's appearances with Plaintiff. In addition, Plaintiff's supervisor, Greer, repeatedly yelled at her in front of patients and others. Taken together and read in a light favorable to Plaintiff, the Court finds that the allegations here are sufficient to show extreme and outrageous conduct at the pleading stage. The demurrer to the IIED claim is overruled.

Unfair business practices (Ninth Cause of Action)

Defendants argue that the unfair business practices claim fails because Plaintiff cannot show unlawful, unfair or deceptive practices. Plaintiff has alleged claims for harassment and discrimination, which are unlawful and thus, this argument fails.

The demurrer to the unfair business practices claim is therefore overruled.

Leave to Amend

Defendants argue that Plaintiff should not be given leave to amend because Plaintiff has already amended her complaint twice. This is the first time the Court has provided guidance on Plaintiff's individual causes of action and the Court finds that leave to amend is appropriate.

Defendant Vital Total Health Medical Group's Joinder

Defendant Vital Total Health Medical Group, Inc. filed a joinder on July 10, 2025 that indicated it was set for the same date as Healthmet's demurrer. The joinder, however, was not given its own line on the calendar. Still, it was properly served on Plaintiff and Plaintiff did not oppose the joinder. Further, in the joinder Defendant Vital argues that it is being sued for the same reasons as Healthmet and has the same arguments on demurrer. Therefore the Court will consider Vital's joinder. In the future, however, Vital should ensure that its joinder (should it file another) be given its own line on the calendar.

Defendant Vital Total Health Medical Group, Inc.'s joinder to Healthmet and Greer's demurrer is **overruled as to cause of action 1, 2, 3, 4, 8 and 9 and otherwise sustained with leave to amend**. Plaintiff has ten days from the notice of entry of order to file a third amended complaint.

6. 9:00 AM CASE NUMBER: C25-00284
CASE NAME: MAKHLOUF DOUCHER VS. R.G. HILL & COMPANY
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFFS' COMPLAINT**
FILED BY: R.G. HILL & COMPANY
TENTATIVE RULING:

Defendant R.G. Hill & Company's unopposed Motion to Strike is Granted without Leave to Amend. The following language shall be stricken from the Complaint:

- Plaintiffs' Complaint at p. 17, paragraph 83, which states "After plaintiffs have had the opportunity to inspect defendants' net worth, plaintiffs will seek leave to amend this Complaint to ask that defendants, and each of them, pay plaintiffs punitive and exemplary damages in an amount sufficient to ensure that defendants, and each of them, will be deterred from similar conduct and as an example to deter others from disregarding the rights of similar plaintiffs."
- Plaintiffs' Complaint at p. 18, section E, which states "That the Court adjudge and decree that, after plaintiffs have had the opportunity to inspect defendants' net worth, defendants, and each of them, pay plaintiffs punitive and exemplary damages in an amount so as to ensure that defendants will be deterred from similar conduct and as an example to deter others from disregarding the rights of similar plaintiffs;"
- Plaintiffs' Complaint at p. 17, paragraph 80, which states "the attorneys' fees and other litigation expenses plaintiffs have incurred in prosecuting this action;" and
- Plaintiffs' Complaint at p. 19, section H, which states "That the Court adjudge and decree that defendants, and each of them, pay plaintiffs' attorneys' fees and costs of suit herein;"

7. 9:00 AM CASE NUMBER: C25-00284
CASE NAME: MAKHLOUF DOUCHER VS. R.G. HILL & COMPANY
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: R.G. HILL & COMPANY
TENTATIVE RULING:

The unopposed demurrer of Defendant R.G. Hill & Company is sustained as to the Second, Third, Fourth, Sixth, Seventh, Tenth, Eleventh and Twelfth Causes of Action in the Plaintiff's Complaint without leave to amend.

8. 9:00 AM CASE NUMBER: C25-01036
CASE NAME: DAN CARRILLO VS. CHRISTOPHER BEGG
***HEARING ON MOTION IN RE: CONTEST APPLICATION FOR GOOD FAITH SETTLEMENT**
FILED BY: BEGG, CHRISTOPHER
TENTATIVE RULING:

Before the Court is a motion by defendant and cross-complainant CBC General Contractors Inc. to contest an application for good faith settlement determination and the application by plaintiffs Dan